

At Part a term of the Supreme Court held in
the County of Cortland, at the Cortland
Courthouse thereof, on the 10th day of
January, 20 25.

PRESENT: Hon. Mark G Masler, J.S.C.
JUSTICE OF THE SUPREME COURT

CFCU Community Credit Union,

INDEX NO. EF23-155

Plaintiff(s),

v.

Jaime Hammond, Individually and as Administrator of the
Estate of Vicki Jean Hammond a/k/a Vicki Hammond;
Steven Holcomb; People of the State of New York; State of
New York; Casey Strickland,

Defendant(s).

ORDER CONFIRMING
REFEREE REPORT AND
JUDGMENT OF
FORECLOSURE AND SALE

MORTGAGED PROPERTY:
1380 Daisy Hollow Road
Dryden, NY 13053

SBL #: Section: 144.00 Block:
04 Lot: 14.000

Mortgage Servicer: CFCU
Community Credit Union
Mortgage Servicer Phone #: (607) 257-8500

UPON the Summons, Complaint, and Notice of Pendency filed in this action on the 20th
day of March, 2023, the Notice of Motion dated December 11, 2024, the affirmation by Barbara
Dumleavy, Esq., [dated December 11, 2024] the affidavit of merit and amount due by Amber Parker, who is Asset Recovery
Manager, duly sworn to on July 30, 2024, together with the exhibits annexed thereto, all in support
of Plaintiff's motion for a Judgment of Foreclosure and Sale; and

UPON proof that each of the defendants herein has been duly served with the Summons
and Complaint in this action, and has not served any answer to the Complaint or otherwise
appeared, nor had their time to do so extended; and it appearing that more than the legally
required number of days has elapsed since defendants, Jaime Hammond, Individually and as
Administrator of the Estate of Vicki Jean Hammond a/k/a Vicki Hammond and Steven Holcomb



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Brooke Kemak, County Clerk

and People of the State of New York and State of New York and Casey Strickland, were so served and/or appeared; and Plaintiff having established to the court's satisfaction that a judgment against defendants is warranted; and

UPON the affidavit of mailing reflecting compliance with CPLR 3215(g)(3)(iii); and

UPON proof that non-appearing defendants, Jaime Hammond, Individually and as Administrator of the Estate of Vicki Jean Hammond a/k/a Vicki Hammond and Steven Holcomb and People of the State of New York and State of New York and Casey Strickland, are not absent, in accordance with RPAPL §1321(2); and

A Referee having been appointed to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of William J. Pomeroy Esq. dated November 11, 2024, showing the sum of \$30,242.70 due as of November 2, 2023 ^{MGM} ~~the date of said Report~~ and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by LOGS Legal Group LLP f/k/a Shapiro, DiCaro & Barak, LLC, attorneys of record for the Plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED, that the motion is granted; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the Complaint ~~and as hereafter described~~, or such part thereof as may be sufficient to discharge ^{MGM}

the mortgage debt, the expenses of the sale, and the costs of this action as provided by the
RPAPL be sold within 90 days of the date of this Judgment, in one parcel, at a public auction at
the Cortland County Courthouse, Cortland, New York 13045, by and under the direction of
William J. Pomeroy, Esq., 16 Tompkins St, PO BOX 828, Cortland, NY 13045, 607-756-7501

who is hereby appointed Referee for that purpose; that said Referee give public notice of the time
and place of sale in accordance with RPAPL §231 in *the Cortland Standard*; and it is further

ORDERED, ADJUDGED AND DECREED, that by accepting this appointment, the
Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22
NYCRR Part 36), including, but not limited to §36.2(c) ("Disqualifications from appointment")
and §36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is
disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee
shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee is prohibited from
accepting or retaining any funds for him/herself or paying funds to him/herself without
compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee shall conduct the
foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at
the sale or the Referee has received a written bid and Terms of Sale from Plaintiff, its successors
and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED, AND DECREED that if the Referee does not conduct the
sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed
by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably
practicable; and it is further

Exhibit A

MGM

ORDERED, ADJUDGED, AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED, AND DECREED that, except as set forth herein, the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED, AND DECREED that, except as set forth herein, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in the Referee's I.O.L.A. account maintained for legal clients, in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED, that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED, AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED, AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents or water rates, which are, or may become, liens on the property at the time of sale with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee then deposit the balance of said proceeds of sale in his/her own name as Referee in their I.O.L.A. account maintained for legal clients, and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more or in the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in

the sum of \$ 250 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$30,242.70 with interest at the note rate from November 2, 2023 until the date of entry of this judgment, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements: \$5,402.32 adjudged to the Plaintiff for costs and disbursements in this action, with interest at the statutory judgment rate from the date of entry of this judgment;

Additional Allowance: \$ 0 - is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$5,225.00 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and funds shall be deposited with the Clerk of the Court; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due to Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First", "Second", "Third", and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against The Estate of Vicki Hammond, now deceased, *MGM* unless discharged in bankruptcy, in accordance with RPAPL § 1371 if permitted by law; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and

maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof; and it further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

~~**ORDERED, ADJUDGED AND DECREED** that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof.~~

Said property is commonly known as 1380 Daisy Hollow Road, Dryden, NY 13053.

~~The legal description of the mortgaged property referred to herein is annexed hereto as~~ *MGM*
~~Schedule A.~~

ENTER

DATED: *January 13, 2025*
Cortland, New York

MGM

Hon. Mark G Masler, J.S.C.
Justice of the Supreme Court

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Brooke Kemak, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the

bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

STATE OF NEW YORK
SUPREME COURT: COUNTY OF CORTLAND

Plaintiff(s),

TERMS OF SALE

Index No.:

v

Defendant(s).

_____ has this the _____ day of _____, 20____,
purchased the real property described in the accompanying Terms of Sale for the sum of
\$ _____.

I hereby acknowledge reading the preceding Terms of Sale, agree they are a binding contract and
consent to each and every provision, and promise and agree to comply with same.

Dated: _____

Purchaser's Signature

Received from the said Purchaser the sum of \$ _____, being ten percent of the
amount bid by the said Purchaser(s) for property sold by me, under the Judgment in the above
captioned action.

Referee's Signature

Purchaser's Contact Information:

Plaintiff's Contact Information:

Name

Name

Phone No.

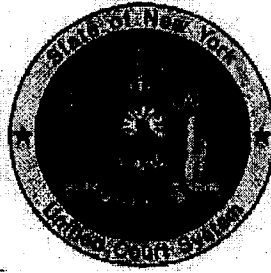
Phone No.

Purchaser's Attorney's Name

Email

Attorney's Phone No.

Attorney's Email



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.
 13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.
 14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.
-
15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.
 16. Auction locations and contact list:

County	Location	Scheduling contact
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS and CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	rmjackson@nycourts.gov TPKSC@nycourts.gov

Revised 7/17/23

At an ~~IAS~~ Part a Term of the Supreme Court of the State of New York, held in and for the County of CORTLAND at the Courthouse thereof, Courthouse, Suite 301, 46 Greenbush Street, Cortland, New York 13045 the 8th day of January, 20 25.

PRESENT:

HONORABLE: Mark G Masler

Justice of the Supreme Court

The Bank of New York Mellon FKA The Bank of New York, as Trustee for the certificateholders of the CWABS, Inc., Asset-Backed Certificates, Series 2007-1

Plaintiff(s),

-against-

JEFFREY K. KABANUK, MARIA J. BACA,

Defendant(s)

Index Number: EF23-242

Order Confirming Referee Report and Judgment of Foreclosure and Sale

Mortgaged Premises: 5 EVERGREEN ST., CORTLAND, NY 13045

County: CORTLAND
SBL#: 86.25-03-13.000

The servicer for this mortgage is NewRez LLC f/k/a New Penn Financial, LLC d/b/a Shellpoint Mortgage Servicing whose phone number is (800) 365 -7107.

MGM
UPON the Summons, Complaint, and Notice of Pendency filed in this action on 23rd day of May, 2023, the Notice of Motion dated December 17, 2024, the affirmation by Ted Eric May, Esq., dated December 17, 2024, the affidavit of merit and amount due by Roni Neumann, who is Document Verification Specialist of NewRez LLC d/b/a ~~Shellpoint Mortgage Servicing, 75 Beattie Pl #300, Greenville, SC 29601. We~~ ~~can be reached at (800) 365 -7107.~~ duly sworn on November 21, 2024, together with the exhibits annexed thereto, all in support of Plaintiffs motion for a Judgment of Foreclosure and Sale. The servicer for this mortgage is NewRez LLC f/k/a New Penn Financial, LLC d/b/a Shellpoint Mortgage Servicing whose phone number is (800) 365 -7107.; and

UPON proof that each of the defendants herein has been duly served with the Summons and Complaint in this action, and have not served any answer to the Complaint or otherwise



appeared, nor had their time to do so extended; and it appearing that more than the legally required number of days has elapsed since defendants Jeffrey Kabanuk and Maria J. Baca were so served and/or appeared; and Plaintiff having established to the court's satisfaction that a judgment against defendants is warranted; and

UPON the affidavit of mailing reflecting compliance with CPLR 3215(g)(3)(iii); and

UPON proof that non-appearing defendants Jeffrey Kabanuk and Maria J. Baca are not absent, in accordance with RPAPL §1321(2); and

A Referee having been appointed to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of Dante Armideo dated December 6, 2024, showing the sum of \$116,862.19 due as of the date of said Report and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by Ted Eric May, Esq., attorney for the Plaintiff, it is hereby

ORDERED, that the motion is granted ~~without opposition (when applicable)~~; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee's Report of Dante Armideo dated December 6, 2024, be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in

the Complaint ~~and as hereafter described~~, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by the RPAPL be sold, within 90 days of the date of this Judgment, in one parcel, at a public auction (pursuant to the Terms of Sale and Foreclosure Auction Plan attached as Exhibit A) at the Courthouse, Suite 301, 46 Greenbush Street, Cortland, New York 13045 by and under the direction of Dante Armideo, 39 Church Street Cortland, NY 13045 who is hereby appointed MGM

Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL §231 in The Cortland Standard; and it is further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment, the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2 (c) ("Disqualifications from appointment") and §36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale, and it is further for the Referee has received a written bid and signed Terms of Sale from plaintiff, its successors and/or assigns, or its representative MGM

ORDERED, ADJUDGED AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably

practicable; and it is further

ORDERED, ADJUDGED AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, In cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in an Escrow or IOLA account in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date

of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of

the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee then deposit the balance of said proceeds of sale in her/his own name as Referee in said escrow or IDLA account, and shall

thereafter make the following payments in accordance with RPAPL §1354, as follows:

WGA FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), not to exceed ~~\$500.00~~ ^{\$750} unless the property sells for \$50,000.00 or more or in the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$ 250 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or

water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills

presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$116,862.19 with interest at the note rate from September 3, 2018 until April 30, 2024, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements: \$ 2,505 adjudged to the Plaintiff for costs and disbursements in this action, if applicable to be taxed or calculated by the Clerk and inserted herein, with interest at the statutory judgment rate from the date of entry of this judgment;

Additional Allowance: \$ - 0 - is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$ 4,950 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be deposited with the County Clerk's office paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and in accordance with local County rules regarding Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer

tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First," "Second," "Third", and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against JEFFREY K. KABANUK AND

MARIA J. BACA(s) in accordance with RPAPL §1371 if permitted by law; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title,

and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the CORTLAND County Clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment

stating whether the sale has occurred and the outcome thereof.

Said property is commonly known as 5 EVERGREEN ST., CORTLAND, NY 13045.

~~The legal description of the mortgaged property referred to herein is annexed hereto as~~

~~Schedule A and the Terms of Sale as Schedule B.~~ *MSM*

Dated: *January 15, 2025*
Cortland, New York

ENTER

MSM

Justice of the Supreme Court

HON. MARK G. MASLER

Brooke Kemak

2025370476



CJ-2025-00141

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15 Pages

JUDGMENT OF FORECLOSURE AND SALE
Brooke Kemak, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the

bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

STATE OF NEW YORK
SUPREME COURT: COUNTY OF CORTLAND

Plaintiff(s),

TERMS OF SALE

Index No.:

v

Defendant(s).

_____ has this the ____ day of _____, 20____,
purchased the real property described in the accompanying Terms of Sale for the sum of
\$ _____.

I hereby acknowledge reading the preceding Terms of Sale, agree they are a binding contract and
consent to each and every provision, and promise and agree to comply with same.

Dated: _____

Purchaser's Signature

Received from the said Purchaser the sum of \$ _____, being ten percent of the
amount bid by the said Purchaser(s) for property sold by me, under the Judgment in the above
captioned action.

Referee's Signature

Purchaser's Contact Information:

Plaintiff's Contact Information:

Name

Name

Phone No.

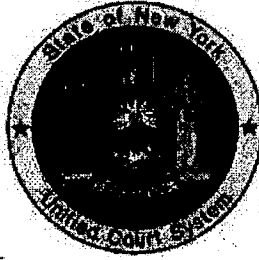
Phone No.

Purchaser's Attorney's Name

Email

Attorney's Phone No.

Attorney's Email



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.
13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.
14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.

15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.

16. Auction locations and contact list:

<u>County</u>	<u>Location</u>	<u>Scheduling contact</u>
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS_and_CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	TPKSC@nycourts.gov

Revised 4/17/24

At an IAS Part ^{1a Term} of the Supreme Court of the
State of New York held in the County of Cortland
at the Courthouse, located at Courthouse, 46
Greenbush Street, Cortland, NY 13045-2772 on
January 10, 2025, 2024.

PRESENT: Hon. MARK G. MAWLER
JUSTICE OF THE SUPREME COURT

-----X
WILMINGTON SAVINGS FUND SOCIETY,
FSB, NOT IN ITS INDIVIDUAL CAPACITY,
BUT SOLELY AS INDENTURE TRUSTEE OF
CITIGROUP MORTGAGE LOAN TRUST 2017-
RP1,

Plaintiff,

-against-

GORDON A. SCUTT, JR. KNOWN HEIR OF
ESTATE OF VERA SCUTT; TERANCE SCUTT,
KNOWN HEIR OF ESTATE OF VERA SCUTT;
MARINER FINANCE, LLC; TOWN OF
CUYLER; NEW YORK STATE DEPARTMENT
OF TAXATION AND FINANCE; CORTLAND
COUNTY DEPARTMENT OF SOCIAL
SERVICES; UNITED STATES OF AMERICA-
INTERNAL REVENUE SERVICE,
Defendants.

Index No. EF23-158

**ORDER CONFIRMING REFEREE'S
REPORT AND JUDGMENT OF
FORECLOSURE AND SALE**

MORTGAGED PROPERTY:
7534 EAST KEENEY RD
CUYLER, NY 13158

SBL #: 11.00-05-10.000

Servicer: Nationstar Mortgage LLC
1-833-587-0060

-----X
UPON the Summons, Complaint, and Notice of Pendency filed in this action on March 20, 2023,
with proof of due service thereof; the Notice of Motion and Affirmation by Mark R. Knuckles, Esq. both
dated December 11, 2024, the Affirmation of Amount Due by Juan Alvarez, Assistant Secretary of
Nationstar Mortgage LLC, the servicer and attorney-in-fact for Wilmington Savings Fund Society, FSB,
not in its individual capacity, but solely as indenture trustee of Citigroup Mortgage Loan Trust 2017-RP1,
the Plaintiff herein, duly affirmed on October 8, 2024, together with the exhibits annexed thereto, all in
support of Plaintiff's motion for a Judgment of Foreclosure and Sale; and

UPON proof that each of the Defendants herein has been duly served with the Summons or

2267-004072-FC/ESTATE OF VERA SCUTT

2025370477

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14 Pages
COURT & TRUST
Brooke Kemak, County Clerk

Summons and Complaint in this action and has voluntarily appeared either personally or by an attorney, or has not served any answer to the Complaint or otherwise appeared, nor had their time to do so been extended; and it appearing that more than the legally required number of days has elapsed since the Defendants captioned herein were so served and/or appeared; and Plaintiff having established to the court's satisfaction that a judgment against the Defendants is warranted; and

UPON the affidavit of mailing reflecting compliance with CPLR 3215(g)(3); and

UPON proof that the non-appearing Defendants are not absent, in accordance with RPAPL § 1321(2); and

UPON a Referee having been appointed to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of Michael R. Cardinale, Esq., dated November 14, 2024, showing the sum of \$13,352.41 due as of September 30, 2024 the date set forth in said Report and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein; and

NOW, on motion by Mark R. Knuckles, Esq., attorney for the Plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED, that the motion is granted; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the Complaint ~~and as hereafter described~~, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by the RPAPL be sold, within 90

days of the date of this Judgment, in one parcel, at a public auction at the Cortland County Courthouse pursuant to the Terms of Sale and Foreclosure Auction Plan attached as Exhibit A, by and under the Non direction of Michael R. Cardinale, Esq., 8432 Brewerton Road, Ste 100, Cicero, NY 13039, who is hereby appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL §231 in The Cortland Standard; and it is further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment, the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2(c) ("Disqualifications from appointment") and §36.2(d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale or the referee has received a written bid and signed Terms of sale from same MBM only if Plaintiff, its successors and/or assignees, or its representative is present at the sale; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, by certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case

no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in an escrow or IOLA account in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes,

assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee then deposit the balance of said proceeds of sale in her/his own name as Referee in said escrow or TOLA account and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), in the sum of \$750.00, unless the property sells for \$50,000 or more *NGM*. In the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$ 250 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:
Amount due per Referee's Report: \$13,352.41 with interest at the note rate from October 1, 2024, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the

property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements: \$ 3,225 adjudged to the Plaintiff for costs and disbursements in this action ¹²³¹ ~~to be~~ taxed by the Clerk ~~and inserted herein~~, with interest at the statutory ¹²³¹ judgment rate from the date of entry of this judgment; ¹²³¹ ^{NGM}

Additional Allowance: \$ - 0 - is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$7,000.00 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be deposited with the Cortland County Clerk by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and in accordance with local County rules regarding Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be

applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale; shall be paid by the purchaser; not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice

of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the Cortland County Clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that the Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof.

Said property is commonly known as 7534 EAST KEENEY RD, CUYLER, NY 13158.

~~The legal description of the mortgaged property referred to herein is annexed hereto as Schedule~~ *MGM*

~~A:~~

DATED:

January 15, 2025
Cortland, New York

ENTER:

MGM

HON. MARK G. MASLER
Supreme Court Justice

Brooke Kemak

2025370477



CJ-2025-00142

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14 Pages

JUDGMENT OF FORECLOSURE AND SAI
Brooke Kemak, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

STATE OF NEW YORK
SUPREME COURT: COUNTY OF CORTLAND

Plaintiff(s),

TERMS OF SALE

Index No.:

v

Defendant(s).

_____ has this the ____ day of _____, 20____,
purchased the real property described in the accompanying Terms of Sale for the sum of
\$ _____.

I hereby acknowledge reading the preceding Terms of Sale, agree they are a binding contract and
consent to each and every provision, and promise and agree to comply with same.

Purchaser's Signature

Dated: _____

Received from the said Purchaser the sum of \$ _____, being ten percent of the
amount bid by the said Purchaser(s) for property sold by me, under the Judgment in the above
captioned action.

Referee's Signature

Purchaser's Contact Information:

Plaintiff's Contact Information:

Name

Name

Phone No.

Phone No.

Purchaser's Attorney's Name

Email

Attorney's Phone No.

Attorney's Email



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.
13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.
14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.
15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.
16. Auction locations and contact list:

<u>County</u>	<u>Location</u>	<u>Scheduling contact</u>
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS and CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	TPKSC@nycourts.gov

Revised 4/17/24

At an ^{1st} ~~I.A.S.~~ Term, part ~~1st~~ of the Supreme Court of the County of Cortland held in the Cortland Supreme Court in the city of Cortland, New York on the 17th day of January, 20 25.

PRESENT: ~~HON.~~ HON. MARK G. MASLER
SUPREME COURT OF THE STATE OF NEW YORK

-----X
NATIONSTAR MORTGAGE LLC

**ORDER CONFIRMING REFEREE
REPORT AND JUDGMENT OF
FORECLOSURE AND SALE**

Plaintiff

INDEX #: EF24-098

VS

GARY L. STROUT, JR., CARRIE STROUT
KANE, ADMINISTRATOR OF THE ESTATE
OF GARY L. STROUT, SR.

MORTGAGED PREMISES:
26 West Center Street
McGraw, NY 13101

Defendant(s)

Mortgage Servicer:
Nationstar Mortgage LLC
Mortgage Servicer Phone Number:
1-888-480-2432

-----X
UPON the Summons, Complaint and Notice of Pendency filed in this action on February 20, 2024, the Notice of Motion dated December 10, 2024 and the affirmation by Sallie L Moppert, Esq., ^{NGM} dated December 10, 2024, the affirmation of merit and amount due by Yvonne Acosta who is a Document Execution Sr. Associate of Nationstar Mortgage LLC, signed on August 23, 2024, together with the Exhibits annexed hereto, all in support of Plaintiff's motion for a Judgment of Foreclosure and Sale; and

UPON proof that each of the Defendants herein has been duly served with the Summons and Complaint, has not served any answer to the Complaint or otherwise appeared, nor had their



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COURT & TRUST
Brooke Kemak, County Clerk

time to do so extended; and it appearing that more than the legally required number of days has elapsed since Defendants Gary L. Strout, Jr. and Carrie Strout Kane, Administrator of the Estate of Gary L. Strout, Sr., who have not answered or appeared were so served and/or appeared; and Plaintiff having established to the court's satisfaction that a Judgment against defendants is warranted; and

UPON the Affidavit of mailing reflecting compliance with CPLR §3215(g)(3)(iii); and

UPON proof that the non-appearing defendant Carrie Strout Kane, Administrator of the Estate of Gary L. Strout, Sr., is not absentee, in accordance with RPAPL § 1321(2); and

UPON a Referee having been appointed to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of Jeffrey Deroberts, Esq. dated November 06, 2024, showing the sum of \$67,032.33, due as of June 26, 2024, and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by Sallie L Moppert, Esq., attorney for the Plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED that the motion is granted; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee's Report be, and the same is, hereby in all aspects ratified and confirmed; and it is further

MGM
ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the Complaint, ~~and as hereafter described~~, or such part thereof as may be sufficient to discharge the mortgage debt, the expense of the sale, and the costs of this action as provided by the RPAPL

1 pursuant to the Terms of Sale and Foreclosure Auction Plan attached as Exhibit A

MGM
be sold, within 90 days of the date of this Judgment, in one parcel, at a public auction at the Main Lobby of the Cortland County Courthouse, 46 Greenbush Street, City of Cortland and to the extent possible, at _____ AM/PM by and under the direction of Jeffrey Deroberts, Esq., 333 E. Onondaga Street, Suite 4A, Syracuse, NY 13202, 315-479-6445 who is appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL § 231 in ^[The] Cortland Standard; and it is further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment, the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to § 36.2 (c) ("Disqualifications from Appointment") and § 36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representatives is present at the sale or the Referee has received a written bid and Terms of Sale from Plaintiff, its successors and/or assigns, or its representatives; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee cannot conduct the sale within 90 days of the date of the judgment, in accordance with CPLR § 2004, for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the Court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase process shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay then percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in an IOLA or escrow ^(account in his name) as Referee, in ^{16th} accordance with CPLR § 2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL § 1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of the completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a Court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee then deposit the balance of said proceeds of sale in his/her own name as Referee in said SOLA or escrow account and shall MGM thereafter make the following payments in accordance with RPAPL § 1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR § 8003(b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more OR in the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$ 250 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not apparently become absolute, and

any other amounts due in accordance with RPAPL § 1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale.

FOURTH: The Referee shall also pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$67,032.33 with interest at the Note rate from June 27, 2024 until entry of this Judgment, together with any advances as provided for in the Note and Mortgage that Plaintiff has made for taxes, insurance, principal, and interest, and any other charges permitted by the terms of the Note and Mortgage or paid to senior mortgagees or to maintain the Property pending consummation of this foreclosure sale that were not included in the Referee's computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the Note and Mortgage until of entry of this Judgment, and then with interest at the statutory rate until the date the Deed is transferred;

Costs and Disbursements. \$2,971.25 adjudged to the Plaintiff for costs and disbursements in this action with interest at the statutory judgment rate from the date of entry of this judgment;

Additional Allowance. \$ 0 is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees. \$ 5,650 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment.

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL § 1354(4) and in accordance with local County rules regarding Surplus monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second" and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above; when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of

sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law § 1404; and it is further

ORDERED, ADJUDGED AND DECREED that the property is sold in one parcel in "as is" physical order and condition, subject any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; liens of record, if any, except those liens addressed in RPAPL § 1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; any rights pursuant to CPLR § 317, § 2003 and § 5015, or any appeal of the underlying action or additional litigation brought by any Defendant on its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR § 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the Court, the officer making the sale shall file with the clerk a report under oath of the disposition of the

proceeds of the sale in accordance with RPAPL § 1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve the Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL § 1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Action Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the Court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof; and it is further

ORDERED, that the sale shall be conducted in accordance with the applicable

judicial district foreclosure auction plan and rules in effect at the time of the auction; and it
is further

~~The legal description of the mortgaged property referred to herein is annexed hereto as~~
~~Schedule A.~~ *MGM*

Dated: February 26, 2025

ENTER,

in Cortland, New York

MGM

~~HON~~ HON. MARK G. MASLER
JUSTICE OF THE SUPREME COURT

Brooke Kemak



CJ-2025-00479
02/26/2025 04:19:10 PM

JUDGMENT OF FORECLOSURE AND SALE
Brooke Kemak, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature _____

STATE OF NEW YORK
SUPREME COURT:

COUNTY OF CORTLAND

Plaintiff(s),

TERMS OF SALE

Index No.:

v

Defendant(s).

_____ has this the _____ day of _____, 20____,
purchased the real property described in the accompanying Terms of Sale for the sum of
\$ _____.

I hereby acknowledge reading the preceding Terms of Sale, agree they are a binding contract and
consent to each and every provision, and promise and agree to comply with same.

Dated: _____

Purchaser's Signature

Received from the said Purchaser the sum of \$ _____, being ten percent of the
amount bid by the said Purchaser(s) for property sold by me, under the Judgment in the above
captioned action.

Referee's Signature

Purchaser's Contact Information:

Plaintiff's Contact Information:

Name

Name

Phone No.

Phone No.

Purchaser's Attorney's Name

Email

Attorney's Phone No.

Attorney's Email



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
- ~~9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.~~
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.
13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.
14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.
15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.
16. Auction locations and contact list:

<u>County</u>	<u>Location</u>	<u>Scheduling contact</u>
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS_and_CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	TPKSC@nycourts.gov

Revised 4/17/24

At a term of the Supreme Court held in and
for the County of Cortland, at the Courthouse
thereof, on February 14, 2025.

PRESENT: HON. MARK G. MASLER
Justice Presiding.

STATE OF NEW YORK
SUPREME COURT: COUNTY OF CORTLAND

LAKEVIEW LOAN SERVICING, LLC,

Plaintiff(s),

v

**BRIAN ROBINSON A/K/A BRIAN C. ROBINSON;
CORTLAND REGIONAL MEDICAL CENTER
INC.; TIMEBUYER, INC.; DEIDRA TRUITT;
TAYLOR HARRISON; EMILY PELTON; BEN
TRUITT; KAITLIN KEANE,**

Defendant(s).

**JUDGMENT
OF FORECLOSURE
AND SALE**

Index No.: EF23-472

MORTGAGED PROPERTY:
30 Front Street
Marathon, NY 13803

Section: 157.20
Block: 02
Lot: 27.000

Mortgage Servicer:
Nationstar d/b/a Rushmore

Phone #: 877-888-4606

Upon the Summons, Verified Complaint and Notice of Pendency duly filed in the Cortland County Clerk's Office on August 29, 2023, and all proceedings thereon; and on reading and filing the Notice of Motion dated December 30, 2024, Affirmation of Regularity of Juliana Thibaut, Esq. dated December 30, 2024, with exhibits annexed thereto, showing that all of the Defendant(s) herein have been duly served within this State with a copy of the Summons in this action, or have voluntarily appeared pro se or by their respective attorneys, or after due diligent efforts to effectuate service having been unsuccessful and a determination made that such service upon certain Defendant(s) cannot be effected; and on proof of service upon and appearance, if any, by

the Defendant(s) herein heretofore filed in this action; and stating that more than the legally required number of days have elapsed since said Defendant(s) were so served; and that all Defendant(s) herein have defaulted in pleading by failing to serve an answer to said Complaint, nor has their time to do so been extended; and Plaintiff having established to the court's satisfaction that judgment against defendants is warranted; and

UPON the affidavit of mailing reflecting compliance with CPLR 3215 (g) (3) (i); and

UPON proof that any non-appearing defendants are not absent, in accordance with RPAPL §1321 (2); and

A REFEREE having been appointed to compute the amount due to the Plaintiff upon the bond/note and mortgage set forth in the Complaint, and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the report of Russell E. Maines, Esq., dated December 17, 2024, showing the sum of \$126,169.21 was due as of November 29, 2024, and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by Friedman Vartolo LLP, attorneys for plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED that the motion is granted; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the Complaint, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by the RPAPL be sold, within 90 days of the

date of this Judgment, in one parcel, at a public auction pursuant to the Terms of Sale attached as Exhibit A hereto (the Terms of Sale) and the Sixth Judicial District Foreclosure Auction Plan, a copy of which is also attached to this Judgment, at the Cortland County Courthouse by and under the direction of Russell E. Maines, Esq., P.O. Box 6514, Ithaca, New York 14851-6514, (607) 200-3707, who is hereby appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL §231 in The Cortland Standard; and it is further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment, the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to § 36.2 (c) ("Disqualifications from appointment") and § 36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale or the Referee has received a written bid and signed Terms of Sale from Plaintiff, its successors and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL § 1351 (1) is extended for the Referee to conduct the sale as soon as reasonably

practicable; and it is further

ORDERED, ADJUDGED AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in an escrow or IOLA account in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL § 1353 and the Terms of Sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee then deposit the balance of said proceeds of sale in her/his own name as Referee in an escrow or IOLA account in his/her own name, and shall thereafter make the following payments in accordance with RPAPL § 1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003 (b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more. In the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$250 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid

taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL § 1354 (2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$126,169.21 with interest at the note rate from November 29, 2024 until date of entry of this judgment, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements: \$3,198.75 adjudged to the Plaintiff for costs and disbursements in this action, with interest at the statutory judgment rate from the date of entry of this judgment;

No additional allowance is hereby awarded to Plaintiff;

Attorney Fees: \$5,650.00 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL § 1354 (4) and in accordance with local County rules regarding Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer

tax shall be paid in accordance with Tax Law § 1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First," "Second," "Third", and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against Brian Robinson a/k/a Brian C. Robinson in accordance with RPAPL § 1371 if permitted by law; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL § 1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and

interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL § 1355 (1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL § 1307 and RPAPL § 1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof.

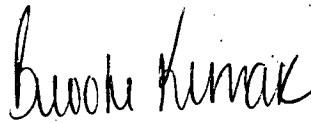
Said property is commonly known as 30 Front Street, Marathon, New York 13803.

Dated: February 26, 2025
Cortland, New York

ENTER



HON. MARK G. MASLER
Supreme Court Justice



CJ-2025-00480

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JUDGMENT OF FORECLOSURE AND SALE
Brooke Kemak, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

STATE OF NEW YORK
SUPREME COURT: COUNTY OF CORTLAND

Plaintiff(s),

TERMS OF SALE

Index No.:

v

Defendant(s).

_____ has this the ____ day of _____, 20____,
purchased the real property described in the accompanying Terms of Sale for the sum of
\$ _____.

I hereby acknowledge reading the preceding Terms of Sale, agree they are a binding contract and
consent to each and every provision, and promise and agree to comply with same.

Dated: _____

Purchaser's Signature

Received from the said Purchaser the sum of \$ _____, being ten percent of the
amount bid by the said Purchaser(s) for property sold by me, under the Judgment in the above
captioned action.

Referee's Signature

Purchaser's Contact Information:

Plaintiff's Contact Information:

Name

Name

Phone No.

Phone No.

Purchaser's Attorney's Name

Email

Attorney's Phone No.

Attorney's Email



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
- ~~9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.~~
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.

13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.

14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.

15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.

16. Auction locations and contact list:

<u>County</u>	<u>Location</u>	<u>Scheduling contact</u>
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov kslitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS and CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	TPKSC@nycourts.gov

Revised 4/17/24

At an I.A.S. ^{1a} Term, part _____ of
the Supreme Court of the County of
Cortland held in the Cortland Supreme
Court in the city of Cortland, New York on
the 14th day of February,
20 25.

PRESENT: HON. MARK G. MASLER
SUPREME COURT OF THE STATE OF NEW YORK

-----X
WELLS FARGO BANK, N.A.

**ORDER CONFIRMING REFEREE
REPORT AND JUDGMENT OF
FORECLOSURE AND SALE**

Plaintiff

INDEX #: EF24-349

vs

BROOKS M. ELDRIDGE AKA BROOKES M.
ELDRIDGE

MORTGAGED PREMISES:
4898 Health Camp Road
Cortland, NY 13045

Defendant(s)

Mortgage Servicer:
Wells Fargo Home Mortgage
Mortgage Servicer Phone Number:
1-877-617-5274

-----X
UPON the Summons, Complaint and Notice of Pendency filed in this action on June 14,
2024, the Notice of Motion dated December 20, 2024 and the affirmation by Sallie L Moppert,
MGM dated December 20, 2024
Esq., the affirmation of merit and amount due by Armenia L. Harrell who is Vice President Loan
Documentation of Wells Fargo Bank, N.A., dated October 01, 2024, together with the Exhibits

annexed hereto, all in support of Plaintiff's motion for a Judgment of Foreclosure and Sale; and

UPON proof that each of the Defendants herein has been duly served with the Summons
and Complaint, has not served any answer to the Complaint or otherwise appeared, nor had their



2025-01411
02/26/2025 04:27:58 PM

COURT & TRUST
Brooke Kemak, County Clerk

time to do so extended; and it appearing that more than the legally required number of days has elapsed since Defendants Brooks M. Eldridge AKA Brookes M. Eldridge who has not answered or appeared were so served and/or appeared; and Plaintiff having established to the court's satisfaction that a Judgment against defendants is warranted; and

UPON the Affidavit of mailing reflecting compliance with CPLR §3215(g)(3)(iii); and

UPON proof that the non-appearing defendant Brooks M. Eldridge AKA Brookes M. Eldridge is not absentee, in accordance with RPAPL § 1321(2); and

UPON a Referee having been appointed to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of Kevin T. Hunt Esq. dated December 12, 2024, showing the sum of \$91,100.61, due as of September 30, 2024, and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by Sallie L Moppert, Esq., attorney for the Plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED that the motion is granted; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee's Report be, and the same is, hereby in all aspects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the Complaint ~~and as hereafter described~~, or such part thereof as may be sufficient to discharge

MGM the mortgage debt, the expense of the sale, and the costs of this action as provided by the RPAPL, pursuant to the Terms of Sale and Foreclosure Auction Plan attached as Exhibit A be sold, within 90 days of the date of this Judgment, in one parcel, at a public auction at the ~~Main~~ [^]

¹⁴
~~Lobby of~~ the Cortland County Courthouse, 46 Greenbush Street, City of Cortland and to the ^{MGM}
extent possible, at _____ AM/PM, by and under the direction of Kevin T. Hunt
Esq., 7136 East Genesee St, Fayetteville, NY 13066-1261, 315-637-3663 who is appointed
Referee for that purpose; that said Referee give public notice of the time and place of sale in
accordance with RPAPL § 231 in Cortland Standard; and it is further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment, the
Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22
NYCRR Part 36), including, but not limited to § 36.2 (c) ("Disqualifications from
Appointment") and § 36.2 (d) ("Limitations on appointments based upon compensation"); and, if
the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule,
the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting
or retaining any funds for him/herself or paying funds to him/herself without compliance with
Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the
foreclosure sale only if Plaintiff, its successors and/or assignees, or its representatives is present
at the sale or the Referee has received a written bid and Terms of Sale from Plaintiff, its
successors and/or assigns, or its representatives; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee cannot conduct the sale
the time fixed by RPAPL § 135(1) is extended ^{MGM}
within 90 days of the date of the judgment, in accordance with CPLR § 2004, for the Referee to
conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that at the time of sale the Referee shall
accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were

physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the Court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase process shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay then percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in an IDLA or escrow ^{account in his name} as Referee, in Man accordance with CPLR § 2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL § 1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of

the execution of the deed of sale, or (b) within 90 days of the completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a Court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee then deposit the balance of said proceeds of sale in his/her own name as Referee in said SOLA ^{for escrow account} and shall thereafter make the following payments in accordance with RPAPL § 1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR § 8003(b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more OR in the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$ 250 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not apparently become absolute, and any other amounts due in accordance with RPAPL § 1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees

pursuant to this appointment. The purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale.

FOURTH: The Referee shall also pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$91,100.61 with interest at the Note rate from October 1, 2024 until entry of this Judgment, together with any advances as provided for in the Note and Mortgage that Plaintiff has made for taxes, insurance, principal, and interest, and any other charges permitted by the terms of the Note and Mortgage or paid to senior mortgagees or to maintain the Property pending consummation of this foreclosure sale that were not included in the Referee's computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the Note and Mortgage until of entry of this Judgment, and then with interest at the statutory rate until the date the Deed is transferred;

Costs and Disbursements. \$2,240.45 adjudged to the Plaintiff for costs and disbursements in this action with interest at the statutory judgment rate from the date of entry of this judgment;

Additional Allowance. ¹⁸⁰¹~~\$50.00~~ is hereby awarded to Plaintiff in addition to costs, ^{MCN} with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees. \$5,555.00 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment.

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL § 1354(4) and in accordance with local County rules regarding Surplus monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second" and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above; when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law § 1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First", "Second", "Third", and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against Brooks M. Eldridge AKA Brookes M. Eldridge in accordance with RPAPL §1371 if permitted by law; and it is further

ORDERED, ADJUDGED AND DECREED that the property is sold in one parcel in "as is" physical order and condition, subject any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; liens of record, if any, except those liens addressed in RPAPL § 1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; any rights pursuant to CPLR § 317, § 2003 and § 5015, or any appeal of the underlying action or additional litigation brought by any Defendant on its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR § 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the Court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL § 1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve the Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL § 1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Action Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff

shall file a written report with the Court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof; and it is further

ORDERED, that the sale shall be conducted in accordance with the applicable
judicial district foreclosure auction plan and rules in effect at the time of the auction; and it
is further

~~The legal description of the mortgaged property referred to herein is annexed hereto as~~
~~Schedule A.~~ *MM*

ENTER,

Dated: February 26, 2025

Cortland, New York

MM

HON. MARK G. MASLER
JUSTICE OF THE SUPREME COURT

Brooke Kemak



CJ-2025-00481

02/26/2025 04:27:58 PM

JUDGMENT OF FORECLOSURE AND SALE
Brooke Kemak, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature _____

STATE OF NEW YORK
SUPREME COURT:

COUNTY OF CORTLAND

Plaintiff(s),

TERMS OF SALE

Index No.:

v

Defendant(s).

_____ has this the ____ day of _____, 20____,
purchased the real property described in the accompanying Terms of Sale for the sum of
\$ _____.

I hereby acknowledge reading the preceding Terms of Sale, agree they are a binding contract and
consent to each and every provision, and promise and agree to comply with same.

Dated: _____

Purchaser's Signature

Received from the said Purchaser the sum of \$ _____, being ten percent of the
amount bid by the said Purchaser(s) for property sold by me, under the Judgment in the above
captioned action.

Referee's Signature

Purchaser's Contact Information:

Plaintiff's Contact Information:

Name

Name

Phone No.

Phone No.

Purchaser's Attorney's Name

Email

Attorney's Phone No.

Attorney's Email



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
- ~~9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.~~
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.
13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.
14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.
15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.
16. Auction locations and contact list:

County	Location	Scheduling contact
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov kslts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS and CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	TPKSC@nycourts.gov

Revised 4/17/24